

ENTERPRISE SaaS SERVICES AGREEMENT

(the "Agreement")

This Enterprise SaaS Services Agreement (the "Agreement") is entered into on this 1st day of April, 2026 ("Effective Date"), by and between:

Apex Manufacturing India Pvt. Ltd., a company incorporated under the Companies Act, 2013, having its registered office at Plot No. 42, MIDC Industrial Area, Chakan, Pune, Maharashtra – 410501, India (hereinafter referred to as the "Customer", which expression shall, unless repugnant to the context, include its successors and permitted assigns);

AND

NexusCloud Technologies Pvt. Ltd., a company incorporated under the Companies Act, 2013, having its registered office at 7th Floor, Cyber Towers, Hitech City, Hyderabad, Telangana – 500081, India (hereinafter referred to as the "Vendor", which expression shall, unless repugnant to the context, include its successors and permitted assigns).

The Customer and the Vendor are hereinafter individually referred to as a "Party" and collectively as the "Parties".

RECITALS

WHEREAS, the Vendor is engaged in the business of providing cloud-based enterprise software-as-a-service solutions;

WHEREAS, the Customer wishes to procure, and the Vendor wishes to provide, certain SaaS services on the terms and conditions set out in this Agreement and its Schedules;

NOW, THEREFORE, in consideration of the mutual covenants contained herein, the Parties agree as follows:

1. Definitions

In this Agreement, unless the context otherwise requires, the following terms shall have the meanings set out below:

Defined Term	Meaning
"Agreement"	means this Enterprise SaaS Services Agreement, together with all Schedules, Order Forms, and Exhibits attached hereto or executed hereunder.
"Annual Contract Value" or "ACV"	means the total annual fee payable by the Customer to the Vendor for the Services, being INR 20,00,000 (Indian Rupees Twenty Lakh only) for the Initial Term, as set out in Schedule A.
"Business Day"	means a day (other than a Saturday, Sunday, or public holiday) on which banks are open for business in Pune, Maharashtra.
"Confidential Information"	has the meaning set out in Section 11.1.
"Customer Data"	means all data, content, and information, in any form, submitted, uploaded, or generated by or on behalf of the Customer through the Services.
"Documentation"	means the user manuals, technical specifications, and other materials provided by the Vendor describing the functionality of the Services.
"Initial Term"	means the period of twelve (12) months commencing on the Effective Date, as further described in Section 6.
"Order Form"	means a document executed by both Parties specifying the Services subscribed to, associated fees, and other commercial details.
"Renewal Term"	means each successive twelve (12) month period following the Initial Term, as described in Section 6.
"Services"	means the SaaS platform, associated support, and related services provided by the Vendor to the Customer as described in Section 2 and Schedule A.
"Service Level Agreement" or "SLA"	means the service level commitments set out in Section 8 and Schedule B.
"Subcontractor"	means any third party engaged by the Vendor to perform any part of the Services on the Vendor's behalf.
"Term"	means, collectively, the Initial Term and any Renewal Term(s).

2. Scope of Services

2.1 The Vendor shall provide the Customer with access to its cloud-based enterprise SaaS platform, including the modules, features, and support services specified in Schedule A (the "Services"), for use by the Customer's authorised users solely for the Customer's internal business operations.

2.2 The Services shall be provided in accordance with the Documentation, the SLA set out in Section 8, and applicable Order Form(s) executed by the Parties from time to time.

2.3 The Vendor shall provide standard onboarding, implementation support, and helpdesk support during Business Hours (9:00 AM to 6:00 PM IST, Monday to Friday) as further detailed in Schedule A.

2.4 Any material change to the scope of Services shall be documented in a written amendment or a revised Order Form signed by authorised representatives of both Parties. No verbal or informal modification to the scope shall be binding on either Party.

2.5 The Vendor shall not be obligated to provide any service, feature, customisation, or integration not expressly described in Schedule A or a duly executed Order Form.

3. Fees

3.1 In consideration of the Services, the Customer shall pay the Vendor an Annual Contract Value of INR 20,00,000 (Indian Rupees Twenty Lakh only), exclusive of applicable taxes, for each twelve (12) month period of the Term, as set out in Schedule A.

3.2 All fees are exclusive of Goods and Services Tax (GST) and any other applicable statutory levies, which shall be charged additionally at the rates prevailing at the time of invoicing and borne by the Customer.

3.3 The Vendor shall raise invoices for the Annual Contract Value in advance of each twelve (12) month period of the Term, unless otherwise agreed in an Order Form specifying a different invoicing frequency (e.g., quarterly instalments).

3.4 Except as expressly set out in this Agreement, all fees paid are non-refundable.

4. Price Adjustments

4.1 Price Lock during Initial Term: There shall be no increase to the Annual Contract Value during the Initial Term. The fees set out in Section 3.1 and Schedule A shall remain fixed for the entirety of the Initial Term.

4.2 Annual Escalation after Initial Term: Commencing from the first Renewal Term, and for each subsequent Renewal Term thereafter, the Annual Contract Value shall increase by three percent (3%) over the fee applicable in the immediately preceding twelve (12) month period.

4.3 The Vendor shall provide the Customer with written notice of the revised fees applicable to the upcoming Renewal Term at least sixty (60) days prior to the commencement of such Renewal Term.

4.4 No price adjustment other than the escalation expressly permitted under Section 4.2 shall apply during the Term, whether on account of inflation, currency fluctuation, or otherwise, unless mutually agreed in writing by both Parties.

5. Payment Terms

5.1 The Customer shall pay all undisputed invoices within sixty (60) days from the date of the invoice ("Net 60").

5.2 All payments shall be made in Indian Rupees (INR) by electronic bank transfer to the bank account designated by the Vendor in writing.

5.3 If the Customer disputes any portion of an invoice in good faith, it shall notify the Vendor in writing within fifteen (15) days of receipt of the invoice, specifying the disputed amount and the reasons therefor. The Parties shall use reasonable efforts to resolve such dispute promptly, and the Customer shall pay all undisputed amounts by the original due date.

5.4 Any undisputed amount not paid by the due date shall accrue interest at 1.5% per month (or the maximum rate permitted by applicable law, whichever is lower), calculated from the due date until the date of actual payment.

5.5 The Vendor shall not suspend the Services for non-payment unless (a) the overdue undisputed amount remains unpaid for more than thirty (30) days after the Vendor's written notice of non-payment, and (b) the Vendor has provided the Customer a further fifteen (15) days' opportunity to cure following such notice.

6. Term and Renewal

6.1 This Agreement shall commence on the Effective Date and continue for the Initial Term of twelve (12) months, unless terminated earlier in accordance with Section 7.

6.2 Upon expiry of the Initial Term, this Agreement shall automatically renew for successive Renewal Terms of twelve (12) months each, on the terms set out in this Agreement (including the price escalation described in Section 4.2), unless either Party provides the other with written notice of its intention not to renew at least thirty (30) days prior to the expiry of the then-current Term.

6.3 Where the Customer provides timely notice of non-renewal under Section 6.2, this Agreement shall terminate automatically at the end of the then-current Term, and neither Party shall have any further obligation to the other except as set out in Section 7.4 (Effects of Termination) and any other provision that by its nature survives termination.

7. Termination

- 7.1 Termination for Convenience:** Either Party may terminate this Agreement for any reason, or no reason, by providing the other Party with thirty (30) days' prior written notice.
- 7.2 Termination for Cause:** Either Party may terminate this Agreement with immediate effect by written notice if the other Party: (a) commits a material breach of this Agreement and fails to cure such breach within thirty (30) days of receiving written notice describing the breach; or (b) becomes insolvent, makes an assignment for the benefit of creditors, or becomes subject to proceedings under applicable insolvency or bankruptcy law that are not dismissed within sixty (60) days.
- 7.3 Suspension:** The Vendor may suspend the Customer's access to the Services in accordance with Section 5.5 (Non-Payment) or where continued provision of the Services would violate applicable law, provided that such suspension shall be proportionate and lifted promptly upon resolution of the underlying issue.
- 7.4 Effects of Termination:** Upon termination or expiry of this Agreement for any reason: (a) all outstanding fees for Services rendered up to the effective date of termination shall become immediately due and payable; (b) the Customer's right to access and use the Services shall immediately cease; and (c) the Vendor shall comply with its data return and deletion obligations under Section 9.4.
- 7.5 Termination of this Agreement** shall not affect any rights or obligations of either Party that accrued prior to the effective date of termination, nor shall it prejudice any right of action or remedy that has already accrued to either Party.
- 7.6 Sections 1 (Definitions), 9 (Data Ownership), 10 (Data Security) (to the extent of data-return/deletion certification), 11 (Confidentiality), 12 (Intellectual Property), 13 (Liability), 14 (Indemnification), and 18 (Dispute Resolution) shall survive termination or expiry of this Agreement.**

8. Service Level Agreement

- 8.1** The Vendor shall use commercially reasonable efforts to make the Services available with a minimum monthly uptime of 99.9% ("Uptime Commitment"), measured over each calendar month, as further detailed in Schedule B.
- 8.2** Scheduled maintenance windows, notified to the Customer at least seventy-two (72) hours in advance, shall be excluded from the calculation of the Uptime Commitment, provided such scheduled maintenance does not exceed four (4) hours per calendar month.
- 8.3** Downtime resulting from: (a) the Customer's own equipment, network, or third-party services not provided by the Vendor; (b) force majeure events under Section 19; or (c) the Customer's breach of this Agreement, shall be excluded from the calculation of the Uptime Commitment.
- 8.4 Service Credits:** If the Vendor fails to meet the Uptime Commitment in any calendar month, the Customer shall be entitled to service credits calculated in accordance with the table below, to be applied against the fees payable for the following invoicing period.

Monthly Uptime Achieved	Service Credit (% of Monthly Fee)
Below 99.9% but at or above 99.5%	5%
Below 99.5% but at or above 99.0%	10%
Below 99.0% but at or above 95.0%	20%
Below 95.0%	30%

- 8.5** Service credits under this Section 8 constitute the Customer's sole and exclusive remedy for any failure to meet the Uptime Commitment, save where such failure also constitutes a material breach entitling the Customer to terminate under Section 7.2.
- 8.6** The Customer must submit a claim for service credits in writing within thirty (30) days of the end of the calendar month in which the SLA breach occurred, failing which the claim shall be deemed waived.

9. Data Ownership

- 9.1** As between the Parties, the Customer owns and retains all right, title, and interest in and to all Customer Data, including all Intellectual Property Rights therein. Nothing in this Agreement shall be construed to transfer or grant the Vendor any ownership interest in the Customer Data.
- 9.2** The Vendor is granted a limited, non-exclusive, non-transferable licence to access, process, store, and transmit Customer Data solely to the extent necessary to provide the Services in accordance with this Agreement and the Customer's written instructions.
- 9.3** The Vendor shall not access, use, disclose, sell, or otherwise process Customer Data for any purpose other than providing the Services, including for its own product development, marketing, or benchmarking, without the Customer's prior written consent.
- 9.4 Data Return and Deletion:** Within thirty (30) days following the effective date of termination or expiry of this Agreement, the Vendor shall, at the Customer's election, (a) return all Customer Data to the Customer in a commonly used, machine-readable format, and/or (b) securely delete all Customer Data from its systems and those of its Subcontractors, and shall provide the Customer with written certification confirming such deletion upon request.

10. Data Security

10.1 The Vendor shall implement and maintain administrative, physical, and technical safeguards designed to protect the confidentiality, integrity, and availability of Customer Data, consistent with generally accepted industry standards, including encryption of Customer Data in transit and at rest, access controls, and network security monitoring.

10.2 The Vendor shall maintain a written information security programme and shall make available to the Customer, upon reasonable request, a summary of its current security certifications (e.g., ISO/IEC 27001) or independent audit reports (e.g., SOC 2 Type II), subject to the confidentiality provisions of Section 11.

10.3 In the event of any actual or reasonably suspected unauthorised access to, or disclosure, loss, alteration, or destruction of, Customer Data (a "Security Incident"), the Vendor shall: (a) notify the Customer without undue delay and in any event within seventy-two (72) hours of becoming aware of the Security Incident; (b) provide the Customer with all reasonably available information regarding the nature, scope, and impact of the Security Incident; (c) take prompt and reasonable steps to contain, investigate, and remediate the Security Incident; and (d) cooperate with the Customer in connection with any regulatory notifications or communications to affected data subjects.

10.4 The Vendor shall comply with all applicable data protection laws, including the Digital Personal Data Protection Act, 2023, and the Information Technology Act, 2000 and rules made thereunder, to the extent applicable to its processing of Customer Data.

11. Confidentiality

11.1 "Confidential Information" means all non-public information disclosed by one Party ("Disclosing Party") to the other ("Receiving Party"), whether orally, in writing, or in any other form, that is designated as confidential or that a reasonable person would understand to be confidential given the nature of the information and circumstances of disclosure, including business plans, pricing, technical data, Customer Data, and the terms of this Agreement.

11.2 The Receiving Party shall: (a) hold the Disclosing Party's Confidential Information in strict confidence; (b) not disclose it to any third party except to employees, officers, and Subcontractors who have a need to know and are bound by confidentiality obligations no less protective than those in this Section; and (c) use it solely for the purpose of performing its obligations or exercising its rights under this Agreement.

11.3 The obligations in this Section 11 shall not apply to information that: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was lawfully known to the Receiving Party prior to disclosure; (c) is independently developed without use of the Confidential Information; or (d) is required to be disclosed by law or a valid order of a court or governmental authority, provided the Receiving Party gives the Disclosing Party prompt notice (where legally permitted) to seek a protective order.

11.4 The confidentiality obligations under this Section 11 shall survive termination or expiry of this Agreement for a period of three (3) years, except with respect to Customer Data and trade secrets, for which such obligations shall survive indefinitely or for so long as such information remains a trade secret under applicable law.

12. Intellectual Property

12.1 As between the Parties, the Vendor owns and retains all right, title, and interest in and to the Services, the underlying software platform, Documentation, and all Intellectual Property Rights therein, including any modifications, enhancements, or derivative works thereof.

12.2 As between the Parties, the Customer owns and retains all right, title, and interest in and to the Customer Data and any pre-existing Intellectual Property Rights of the Customer used in connection with the Services.

12.3 Subject to the Customer's compliance with this Agreement, the Vendor grants the Customer a non-exclusive, non-transferable, worldwide licence during the Term to access and use the Services and Documentation solely for the Customer's internal business purposes.

12.4 Nothing in this Agreement shall be construed to grant either Party any right, title, or licence in respect of the other Party's pre-existing Intellectual Property Rights, except as expressly set out herein.

12.5 Any feedback, suggestions, or ideas voluntarily provided by the Customer regarding the Services may be used by the Vendor to improve the Services without obligation or compensation to the Customer, provided such use does not disclose the Customer's Confidential Information or identity.

13. Liability

13.1 Subject to Section 13.3, the aggregate liability of the Vendor arising out of or in connection with this Agreement, whether in contract, tort (including negligence), or otherwise, shall not exceed an amount equal to 100% of the Annual Contract Value paid or payable by the Customer in the twelve (12) months immediately preceding the event giving rise to the claim.

13.2 Subject to Section 13.3, in no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, or for any loss of profits, revenue, business opportunity, or goodwill, arising out of or in connection with this Agreement, even if advised of the possibility of such damages.

13.3 Carve-Outs: The limitations of liability set out in Sections 13.1 and 13.2 shall not apply to, and there shall be no cap on liability arising from: (a) breach of the confidentiality obligations under Section 11; (b) violations of applicable data protection law or the data security obligations under Section 10; (c) infringement of a third party's Intellectual Property Rights under Section 14.1; (d) either Party's indemnification obligations under Section 14; (e) a Party's gross negligence or wilful misconduct; or (f) any liability that cannot be limited or excluded under applicable law.

13.4 Nothing in this Agreement shall limit or exclude either Party's liability for death or personal injury caused by its negligence, or for fraud or fraudulent misrepresentation.

14. Indemnification

14.1 IP Indemnity by Vendor: The Vendor shall defend, indemnify, and hold harmless the Customer against any third-party claim alleging that the Services, as provided by the Vendor and used by the Customer in accordance with this Agreement, infringe such third party's Intellectual Property Rights, and shall indemnify the Customer for damages, costs, and reasonable legal fees finally awarded or agreed in settlement in connection therewith.

14.2 Data Breach Indemnity by Vendor: The Vendor shall indemnify the Customer against any losses, damages, fines, and reasonable legal costs arising from a Security Incident caused by the Vendor's breach of its obligations under Section 10.

14.3 Indemnity by Customer: The Customer shall defend, indemnify, and hold harmless the Vendor against any third-party claim arising from: (a) the Customer's misuse of the Services in violation of this Agreement or applicable law; or (b) Customer Data infringing a third party's rights or violating applicable law, except to the extent caused by the Vendor's breach of this Agreement.

14.4 The indemnified Party shall: (a) promptly notify the indemnifying Party in writing of the relevant claim; (b) grant the indemnifying Party sole control of the defence and settlement of such claim (provided any settlement does not impose liability or admission of fault on the indemnified Party without its consent); and (c) provide reasonable cooperation, at the indemnifying Party's expense.

15. Subcontractors

15.1 The Vendor may engage Subcontractors to perform parts of the Services, provided that the Vendor shall provide the Customer with prior written notice before engaging any material Subcontractor, being a Subcontractor that will have access to Customer Data or that performs a function material to the delivery of the Services.

15.2 The Customer may object, on reasonable data-protection or security grounds, to the engagement of a proposed material Subcontractor within fifteen (15) days of receiving notice under Section 15.1, in which case the Parties shall discuss in good faith an appropriate resolution.

15.3 The Vendor shall ensure that each Subcontractor is bound by confidentiality, data protection, and security obligations no less protective of the Customer than those set out in this Agreement.

15.4 Notwithstanding any subcontracting, the Vendor shall at all times remain fully responsible and liable for the performance of its obligations under this Agreement, including the acts and omissions of its Subcontractors, as if such acts or omissions were those of the Vendor itself.

16. Business Continuity

16.1 The Vendor shall maintain a documented business continuity and disaster recovery plan ("BCP/DR Plan") designed to ensure the continued availability of the Services in the event of a disruptive incident, including hardware failure, natural disaster, or cyberattack.

16.2 The Vendor's BCP/DR Plan shall target a Recovery Time Objective (RTO) of not more than eight (8) hours and a Recovery Point Objective (RPO) of not more than four (4) hours for the Services, and shall include redundant infrastructure and regular data backups.

16.3 The Vendor shall test its BCP/DR Plan at least once every twelve (12) months and shall, upon the Customer's written request, provide a summary of the results of such testing.

16.4 In the event of a disaster or major disruption materially affecting the Services, the Vendor shall promptly notify the Customer and provide regular updates on remediation progress until normal service is restored.

17. Audit Rights

17.1 The Vendor shall maintain accurate records relating to its performance of the Services, its compliance with the SLA, and its compliance with the data security obligations under Section 10.

17.2 The Customer, or an independent third-party auditor appointed by the Customer and bound by confidentiality obligations, may, upon at least thirty (30) days' prior written notice and no more than once every twelve (12) months (or promptly following a Security Incident), audit the Vendor's records, security controls, and processes relevant to this Agreement, during the Vendor's normal business hours and without unreasonably disrupting the Vendor's operations.

17.3 In lieu of an on-site audit, the Vendor may, at its option, satisfy the Customer's audit request by providing a current independent third-party audit report (such as a SOC 2 Type II report) covering substantially the same scope, provided such report reasonably addresses the Customer's audit objectives.

17.4 The Customer shall bear its own costs of conducting an audit under this Section 17, save that if an audit reveals a material non-compliance by the Vendor with this Agreement, the Vendor shall bear the reasonable costs of that specific audit.

18. Dispute Resolution

18.1 Governing Law: This Agreement shall be governed by and construed in accordance with the laws of India, without regard to its conflict of laws principles.

18.2 Escalation: In the event of any dispute, controversy, or claim arising out of or relating to this Agreement (a "Dispute"), the Parties shall first attempt to resolve the Dispute through good-faith negotiation between designated senior representatives of each Party within thirty (30) days of a written notice describing the Dispute.

18.3 Arbitration: If the Dispute is not resolved through negotiation under Section 18.2, it shall be referred to and finally resolved by arbitration under the Arbitration and Conciliation Act, 1996, by a sole arbitrator appointed by mutual agreement of the Parties (or, failing agreement within thirty (30) days, appointed in accordance with the said Act). The seat and venue of arbitration shall be Pune, Maharashtra, India, and the language of arbitration shall be English.

18.4 Courts: Subject to Section 18.3, the courts at Pune, Maharashtra, India shall have exclusive jurisdiction over any matter arising out of or in connection with this Agreement, including applications for interim relief in aid of arbitration.

18.5 Notwithstanding the foregoing, either Party may seek urgent interim or injunctive relief from a court of competent jurisdiction at any time to prevent irreparable harm, including in respect of confidentiality or Intellectual Property Rights.

19. General Provisions

19.1 Force Majeure: Neither Party shall be liable for any delay or failure to perform its obligations (other than payment obligations) due to causes beyond its reasonable control, including natural disasters, war, terrorism, pandemic, governmental action, or internet or utility failures, provided the affected Party promptly notifies the other Party and uses reasonable efforts to mitigate the impact.

19.2 Assignment: Neither Party may assign or transfer this Agreement, in whole or in part, without the prior written consent of the other Party, except that either Party may assign this Agreement without consent in connection with a merger, acquisition, or sale of substantially all of its assets, provided the assignee agrees in writing to be bound by this Agreement.

19.3 Notices: All notices under this Agreement shall be in writing and delivered by hand, registered post, or email (with confirmation of receipt) to the addresses specified in the signature block below, or such other address as a Party may designate in writing.

19.4 Entire Agreement: This Agreement, together with its Schedules and any Order Forms, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior agreements, understandings, and communications, whether written or oral.

19.5 Amendment: No amendment or modification of this Agreement shall be effective unless in writing and signed by authorised representatives of both Parties.

19.6 Severability: If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect, and the Parties shall negotiate in good faith to replace the invalid provision with a valid provision that most closely reflects the original commercial intent.

19.7 Waiver: No failure or delay by either Party in exercising any right under this Agreement shall operate as a waiver of such right, nor shall any single or partial exercise preclude any further exercise of that or any other right.

19.8 Relationship of Parties: The Parties are independent contractors. Nothing in this Agreement shall be construed to create a partnership, joint venture, agency, or employment relationship between the Parties.

19.9 Counterparts: This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original and all of which together shall constitute one and the same instrument.

IN WITNESS WHEREOF

The Parties have executed this Agreement as of the Effective Date first written above.

For and on behalf of	Apex Manufacturing India Pvt. Ltd.
Signature	_____
Name	_____
Designation	_____
Date	_____
Address for Notices	Plot No. 42, MIDC Industrial Area, Chakan, Pune, Maharashtra – 410501, India

For and on behalf of	NexusCloud Technologies Pvt. Ltd.
Signature	_____
Name	_____
Designation	_____
Date	_____
Address for Notices	7th Floor, Cyber Towers, Hitech City, Hyderabad, Telangana – 500081, India

SCHEDULE A — SERVICES AND FEES

Item	Detail
Platform	NexusCloud Enterprise SaaS Platform — Manufacturing Operations Suite
Included Modules	Production Planning, Inventory Management, Quality Control, Reporting & Analytics dashboard
Authorised Users	Up to 150 named users
Support Hours	9:00 AM – 6:00 PM IST, Monday to Friday (excluding public holidays)
Support Channels	Email, ticketing portal, and telephone helpdesk
Annual Contract Value (Initial Term)	INR 20,00,000 (exclusive of applicable taxes)
Invoicing Frequency	Annually, in advance, unless otherwise specified in an Order Form
Payment Terms	Net 60 days from the date of invoice

SCHEDULE B — SERVICE LEVEL AGREEMENT

SLA Parameter	Commitment
Monthly Uptime Commitment	99.9%
Measurement Period	Calendar month
Scheduled Maintenance Allowance	Up to 4 hours/month, with 72 hours' prior notice (excluded from uptime calculation)
Critical Incident Response Time	Within 1 hour of ticket logged
Critical Incident Resolution Target	Within 8 hours of ticket logged
Service Credits	As set out in Section 8.4 of the Agreement
Credit Claim Window	30 days from end of the affected calendar month